

Urban Money Pvt Ltd vs Ojasworking Pvt Ltd on 14 September, 2023

Author: Manoj Kumar Ohri

Bench: Manoj Kumar Ohri

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IN THE HIGH COURT OF DELHI AT NEW DELHI
ARB.P. 532/2023 &I.A. 9317/2023
URBAN MONEY PVT LTD

OJASCOWORKING PVT LTD
Through: None

CORAM:
HON'BLE MR. JUSTICE MANOJ KUMAR OHRI

% 14.09.2023

1. By way of the present petition filed under Section 11 of the Arbitration and Conciliation Act, 1996 (hereinafter, referred to as the 'A&C Act'), the petitioner seeks appointment of arbitral tribunal comprising of a sole arbitrator to adjudicate the disputes between the parties.

2. Mr Alok Gupta, learned counsel for the petitioner submits that the parties had entered into a Lease Agreement dated 27.12.2021.

3. It is submitted that the Agreement contains an arbitration clause which provides that all the disputes, with respect to the said agreement, shall be referred to an arbitrator as per provisions of the A&C Act, and it further provides that the place of arbitration would be at New Delhi.

4. Disputes having arisen between the parties, petitioner invoked arbitration vide notice dated 01.02.2023, issued under Section 21 of the A&C Act.

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5. Learned counsel for the petitioner further submits that the respondent was served by way of

e-mail as well as speed post and in this regard he places reliance on the affidavit of service that has been filed along with the tracking report. He submits that as per the tracking report, the respondent has been served and even the e-mail sent to the respondent has not bounced back. He further submits that in terms of this Court's directions dated 15.05.2023, the MCA website was checked and the registered address as well as the e-mail were found to be the same. Considering the aforementioned submissions, the respondents are deemed to be served.

6. In view of the above, the present petition is disposed of with the following directions:

- i) The disputes between the parties under the said agreement are referred to the arbitral tribunal.
- ii) Mr. Divyam Nandrajog, Advocate (Mob: 9711350679) is appointed as the sole arbitrator to adjudicate the disputes between the parties.
- iii) The arbitration will be held under the aegis of the Delhi International Arbitration Centre, Delhi High Court, Sher Shah Road, New Delhi hereinafter, referred to as the 'DIAC'). The remuneration of the learned Arbitrator shall be in terms of Schedule IV of the A&C Act or as may be agreed by the parties.
- iv) The learned Arbitrator is requested to furnish a declaration in terms of Section 12 of the Act prior to entering into the reference.
- v) It is made clear that all the rights and contentions of the parties, including as to the arbitrability of any of the claim, any other preliminary objection, as well as claims on merits of the dispute of either of the parties, are left open for adjudication by the learned arbitrator.

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- vi) The petitioner shall approach the learned arbitrator within two weeks from today.

7. The petition is disposed of in the above terms.

MANOJ KUMAR OHRI, J SEPTEMBER 14, 2023/rd This is a digitally signed order.

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